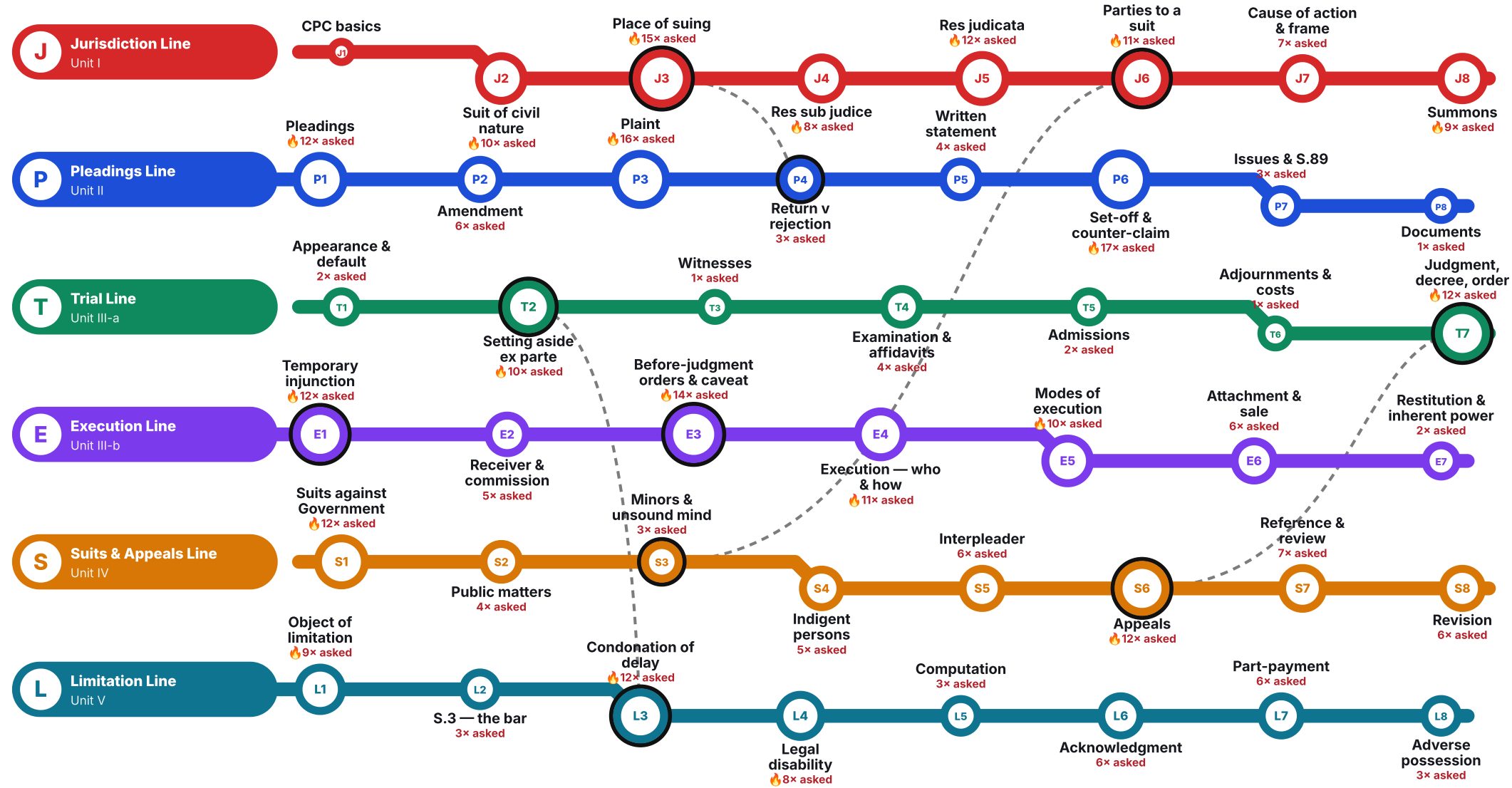
Nyaya Metro — CPC & Limitation

Code of Civil Procedure, 1908 & Limitation Act, 1963 · Osmania LLB (3 YDC) Sem V · the whole subject on one map · 46 stations from 326 past questions

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○ ◯ bigger station = asked more often in past papers ◯ ringed = interchange (dashed walkway links related topics) 🔥 = busiest stations codes (J3, P6…) = ticket numbers inside

How to ride

less reading, more seeing — this is the whole subject as a city you can travel

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The journey: A civil case travels from the court's door (jurisdiction) through pleadings, trial, decree and execution, may branch to special suits and appeals — and the clock of limitation runs beside it all.

🗺️ 1 · Look at the map

Each **line** is a unit, each **station** a keyword you must know. Stand back and see how the subject **connects** before reading a word.

🎫 2 · Read the tickets

One ticket per station: **meaning in one line**, the **section**, the **boss case** and a **memory hook**. That is a Part A answer in skeleton.

🔥 3 · Follow the crowd

Station size and the heat bar come from **past papers** (pink A · blue B · green C). Big stations = where examiners get off most.

🧭 4 · Take a route

Route maps solve the **Part C problems** that keep coming back: answer the question at each stop — **yes** exits to the answer, **no** rides on.

⇄ Interchanges — where topics meet

P4 Return v rejection ⇄ J3 Place of suing
a plaint in the wrong court is returned, not rejected

T2 Setting aside ex parte ⇄ L3 Condonation of delay
a late set-aside petition needs condonation (asked 2022)

S6 Appeals ⇄ T7 Judgment, decree, order
appeals lie only from decrees and appealable orders

J6 Parties to a suit ⇄ S3 Minors & unsound mind
a minor is a party only through a next friend / guardian

E3 Before-judgment orders & caveat ⇄ E1 Temporary injunction
two shields for property before judgment: attachment or injunction

Busiest stations (past papers)

1	P6	**Set-off & counter-claim** (O.VIII r.6, 6A)	17×
2	P3	**Plaint** (O.VII r.1)	16×
3	J3	**Place of suing** (S.15–20)	15×
4	E3	**Before-judgment orders & caveat** (O.XXXVIII · S.148A)	14×
5	J5	**Res judicata** (S.11 (+ Expl. IV, VI))	12×
6	P1	**Pleadings** (O.VI r.1–2)	12×
7	T7	**Judgment, decree, order** (S.2(2), 2(9), 2(14) · O.XX)	12×
8	E1	**Temporary injunction** (O.XXXIX r.1–3, 2A)	12×
9	S1	**Suits against Government** (S.79–82)	12×
10	S6	**Appeals** (S.96–112 · O.XLI–XLII)	12×

Ride it on your phone

Tap any station on the interactive map at lawsticker-ai.com/nyaya-metro · Final Exam Packs, Story Notes & daily lessons on 🏹 **Eklavya** · ask **Vidura**, our free AI legal helper.

Heat = number of past questions (from our previous year question paper analysis) that mention the station's topic — a guide to what has been asked, not a prediction.

J Jurisdiction Line

Unit I · 8 stations

72 past questions touch this line

J1 · CPC basics — J2 · Suit of civil nature — J3 · Place of suing — J4 · Res sub judice — J5 · Res judicata — J6 · Parties to a suit — J7 · Cause of action & frame — J8 · Summons

J1 CPC basics

Jurisdiction Line

not asked directly yet — syllabus station

Procedure is the road map to enforce civil rights: 158 sections (power) + 51 Orders (method).

S.1–2, 121–122

⚖️ **Sangram Singh v Election Tribunal (1955)** — procedure is the handmaid of justice

🧠 *Sections = power · Orders = method*

J2 Suit of civil nature

Jurisdiction Line

asked **10×** A1 · B5 · C4

A civil court tries every civil suit unless a law expressly or impliedly bars it.

S.9

⚖️ **Dhulabhai v State of MP (1968)** — exclusion is never lightly inferred

🧠 *C-B: Civil + not Barred*

J3 Place of suing

Jurisdiction Line

asked **15×** A11 · B0 · C4

Lowest competent court; land → where it lies; wrongs → where done or defendant lives; rest → defendant's home or cause of action.

S.15–20

⚖️ **ABC Laminart v A.P. Agencies (1989)** — choose between competent courts only

⇄ **change for P4 · Return v rejection**

🧠 *Land → land · Wrong → spot or home · Rest → home or cause*

J4 Res sub judice

Jurisdiction Line

asked **8×** A7 · B1 · C0

A later suit on the same matter between the same parties is stayed while the earlier one is pending.

S.10

⚖️ **Indian Bank v Maharashtra State Co-op Marketing Fed. (1998)** — only the trial is stayed

🧠 *Pending → pause*

J5 Res judicata

Jurisdiction Line

asked **12×** A2 · B7 · C3

A matter heard and finally decided between the same parties by a competent court can't be reopened.

S.11 (+ Expl. IV, VI)

⚖️ **Satyadhyan Ghosal v Deorajin Debi (1960)** — RJ binds even later stages of the same case

🧠 *D-S-T-C-F: Directly · Same parties · Title · Competent · Finally decided*

J6 Parties to a suit

Jurisdiction Line

asked **11×** A6 · B1 · C4

Join all who must be there; a necessary party's absence is fatal, a proper party's is not.

O.I r.1, 3, 8, 9, 10

⚖️ **Kasturi v Iyyamperumal (2005)** — necessary = no effective decree without him

⇄ **change for S3 · Minors & unsound mind**

🧠 *Necessary = can't decide without him*

J7 Cause of action & frame

Jurisdiction Line

asked **7×** A6 · B0 · C1

Sue for the whole claim in one suit; a part left out can't be sued for later.

O.II r.2

⚖️ **Gurbux Singh v Bhooralal (1964)** — the bar needs the same cause of action

🧠 *Sue for all or lose the rest*

J8 Summons

Jurisdiction Line

asked **9×** A3 · B3 · C3

The court calls the defendant: personal → family → affixing → substituted service (also e-mail, courier).

S.27–29, O.V

🧠 *P-F-A-S: Personal · Family · Affix · Substituted*

Pleadings Line

Unit II · 8 stations

62 past questions touch this line

P1 · Pleadings — P2 · Amendment — P3 · Plaint — P4 · Return v rejection — P5 · Written statement — P6 · Set-off & counter-claim — P7 · Issues & S.89 — P8 · Documents

P1 · Pleadings

asked 12× — A5 · B3 · C4

Each side's written case: material facts only — not law, not evidence — concisely.

O.VI r.1–2

⚖️ **Ram Sarup Gupta v Bishun Narain (1987)** — read pleadings as a whole, not hyper-technically

🧠 *F-M-N-C: Facts · Material · Not evidence · Concise*

P2 · Amendment

asked 6× — A4 · B1 · C1

Allowed at any stage to decide the real controversy; after trial starts only if earlier impossible despite due diligence.

O.VI r.17

⚖️ **Revajeetu Builders v Narayanaswamy (2009)** — tests for allowing amendment

🧠 *Real question yes · new case no*

P3 · Plaint

asked 16× — A7 · B8 · C1

The plaintiff's pleading: court, parties, facts, cause of action, jurisdiction, valuation, relief.

O.VII r.1

⚖️ **T. Arivandandam v T.V. Satyapal (1977)** — nip vexatious suits in the bud

🧠 *Who · What · When · Where · Why · Want*

P4 · Return v rejection

asked 3× — A1 · B2 · C0

Wrong court → plaint returned; no cause of action / undervalued / barred → plaint rejected.

O.VII r.10, 11

⚖️ **Saleem Bhai v State of Maharashtra (2003)** — r.11 judged on the plaint alone

⇄ **change for J3 · Place of suing**

🧠 *Wrong door → return · dead case → reject*

P5 · Written statement

asked 4× — A3 · B0 · C1

Defendant's reply in 30 days (outer limit 90; commercial 120 strict); deny specifically or it's admitted.

O.VIII r.1, 3–5

⚖️ **Kailash v Nanhku (2005)** — the 90-day limit is directory

🧠 *30 → 90 (120 strict for commercial)*

P6 · Set-off & counter-claim

asked 17× — A10 · B4 · C3

Set-off: an ascertained sum the plaintiff owes; counter-claim: any claim, treated as a cross-suit.

O.VIII r.6, 6A

⚖️ **Ashok Kumar Kalra v Surendra Agnihotri (2019)** — counter-claim before issues, ordinarily

🧠 *Set-off = shield · Counter-claim = sword*

P7 · Issues & S.89

asked 3× — A1 · B2 · C0

The questions the court must answer — framed at the first hearing; ADR referral where settlement is possible.

O.XIV · S.89

⚖️ **Afcons Infrastructure v Cherian Varkey (2010)** — how to apply S.89

🧠 *Issues = the exam paper of the suit*

P8 · Documents

asked 1× — A0 · B0 · C1

Discovery, production, admission and marking of documents; impounding and return.

O.XI–XIII

🧠 *Produce · Admit · Mark · Return*

Trial Line

Unit III-a · 7 stations

32 past questions touch this line

T1 · Appearance & default | T2 · Setting aside ex parte | T3 · Witnesses | T4 · Examination & affidavits | T5 · Admissions | T6 · Adjournments & costs | T7 · Judgment, decree, orde

T1 Appearance & default

asked 2× — A0 · B0 · C2

Plaintiff absent → suit dismissed; defendant absent though served → ex parte hearing.

O.IX r.2–9

⚖️ **Sangram Singh v Election Tribunal (1955)** — ex parte doesn't shut the defendant out

🧠 *Absent plaintiff loses · absent defendant goes ex parte*

Trial Line

T2 Setting aside ex parte

asked 10× — A4 · B2 · C4

Decree set aside if summons not duly served or sufficient cause shown — apply in 30 days; or appeal.

O.IX r.13 · S.96(2)

⚖️ **Bhanu Kumar Jain v Archana Kumar (2005)** — both remedies co-exist

⇄ **change for L3 · Condonation of delay**

🧠 *Not served or good cause → set aside*

Trial Line

T3 Witnesses

asked 1× — A0 · B0 · C1

List witnesses, summon them, pay expenses; President, Governors etc. exempt from appearing.

O.XVI · S.132–133

🧠 *List · Summon · Pay · Examine*

Trial Line

T4 Examination & affidavits

asked 4× — A4 · B0 · C0

Evidence in chief may be by affidavit; cross-examination in court or before a commissioner.

O.XVIII r.4 · O.XIX

⚖️ **Salem Advocate Bar Assn v Union of India (2005)** — the 1999/2002 amendments upheld

🧠 *Chief by affidavit · cross in court*

Trial Line

T5 Admissions

asked 2× — A2 · B0 · C0

Admitted facts need no proof; the court may pass judgment on admissions at any stage.

O.XII r.6

⚖️ **Uttam Singh Duggal v United Bank (2000)** — judgment on clear admissions

🧠 *Admitted = proved*

Trial Line

T6 Adjournments & costs

asked 1× — A1 · B0 · C0

No more than three adjournments to a party; costs follow the event; costs for false claims and delay.

O.XVII · S.35, 35A, 35B

🧠 *3 adjournments max · costs follow the event*

Trial Line

T7 Judgment, decree, order

asked 12× — A8 · B2 · C2

Judgment = reasons; decree = formal adjudication (preliminary / final); order = any other decision.

S.2(2), 2(9), 2(14) · O.XX

⇄ **change for S6 · Appeals**

🧠 *Reasons → judgment · Rights → decree · Rest → order*

Trial Line

E Execution Line

Unit III-b · 7 stations

60 past questions touch this line

E1 · Temporary injunction — E2 · Receiver & commission — E3 · Before-judgment orders & c — E4 · Execution — who & how — E5 · Modes of execution — E6 · Attachment & sale — E7 · Restitution & inherent po

E1 Temporary injunction

asked **12×** — A10 · B1 · C1

Preserve the property till trial: prima facie case + balance of convenience + irreparable injury.

O.XXXIX r.1–3, 2A

⚖️ **Dalpat Kumar v Prahlad Singh (1992)** — the three-fold test

⇄ **change for E3 · Before-judgment orders & caveat**

🧠 *P-B-I*

Execution Line

E2 Receiver & commission

asked **5×** — A2 · B3 · C0

Court-appointed receiver manages disputed property; commissioners examine witnesses, inspect, account.

O.XL · O.XXVI

🧠 *Receiver = court's caretaker*

Execution Line

E3 Before-judgment orders & caveat

asked **14×** — A8 · B3 · C3

Arrest or attachment before judgment to stop a defendant defeating the decree; caveat gives notice of applications.

O.XXXVIII · S.148A

⇄ **change for E1 · Temporary injunction**

🧠 *Run away? arrest · Sell off? attach · Fear ex parte? caveat*

Execution Line

E4 Execution — who & how

asked **11×** — A5 · B5 · C1

The court that passed the decree (or the one it transfers to) executes it; questions between parties decided by it.

S.36–47 · O.XXI

🧠 *Decree is paper; execution is power*

Execution Line

E5 Modes of execution

asked **10×** — A4 · B5 · C1

Delivery of property, attachment and sale, arrest and detention, receiver, or any other mode the decree needs.

S.51

⚖️ **Jolly George Varghese v Bank of Cochin (1980)** — no arrest without ability to pay

🧠 *D-A-A-R-O: Deliver · Attach · Arrest · Receiver · Other*

Execution Line

E6 Attachment & sale

asked **6×** — A2 · B1 · C3

Debtor's property attached and sold; tools, clothes, pension, part of salary etc. are exempt.

S.60 · O.XXI

🧠 *Some things the law never lets you take*

Execution Line

E7 Restitution & inherent power

asked **2×** — A2 · B0 · C0

Undo what was done under a decree later reversed; the court's inherent power fills gaps.

S.144 · S.151

🧠 *Actus curiae neminem gravabit*

Execution Line

Suits & Appeals Line

Unit IV · 8 stations

55 past questions touch this line

S1 · Suits against Government | S2 · Public matters | S3 · Minors & unsound mind | S4 · Indigent persons | S5 · Interpleader | S6 · Appeals | S7 · Reference & review | S8 · Revision

S1 Suits against Government

asked 12× A3 · B3 · C6

Two months' notice first; urgent relief with leave; decree executable only after three months.

S.79–82

⚖️ **Ghanshyam Dass v Dominion of India (1984)** — no fresh notice by legal heirs

🧠 *2-2-3: notice 2 m · leave if urgent · execute after 3 m*

S2 Public matters

asked 4× A4 · B0 · C0

Public nuisance and public trusts: suit by the Advocate General or two persons with leave.

S.91–92

🧠 *AG or 2 with leave*

S3 Minors & unsound mind

asked 3× A0 · B2 · C1

A minor sues by a next friend and is defended by a guardian ad litem; compromise needs leave.

O.XXXII

⇄ **change for J6 · Parties to a suit**

🧠 *Next friend to sue · guardian to defend*

S4 Indigent persons

asked 5× A2 · B2 · C1

A person too poor to pay court fee may sue as an indigent; fee recovered if he wins.

O.XXXIII

🧠 *No money ≠ no justice*

S5 Interpleader

asked 6× A5 · B1 · C0

A holder with no interest asks rival claimants to fight it out among themselves.

S.88 · O.XXXV

🧠 *I hold it; you two decide whose it is*

S6 Appeals

asked 12× A5 · B6 · C1

First appeal on facts and law (S.96); second appeal only on a substantial question of law (S.100).

S.96–112 · O.XLI–XLII

⚖️ **Santosh Hazari v Purushottam Tiwari (2001)** — first appeal must deal with every issue

⇄ **change for T7 · Judgment, decree, order**

🧠 *First: facts + law · Second: substantial law only*

S7 Reference & review

asked 7× A5 · B0 · C2

Lower court refers a legal doubt to the High Court; review for an error apparent, new evidence or sufficient reason.

S.113–114 · O.XLVI–XLVII

🧠 *Review = same judge, second look*

S8 Revision

asked 6× A5 · B1 · C0

High Court corrects jurisdictional errors of subordinate courts where no appeal lies.

S.115

⚖️ **Major S.S. Khanna v Brig. F.J. Dillon (1964)** — 'case decided' explained

🧠 *No appeal + jurisdiction error → revision*

L Limitation Line

Unit V · 8 stations

50 past questions touch this line

L1 · Object of limitation — L2 · S.3 — the bar — L3 · Condonation of delay — L4 · Legal disability — L5 · Computation — L6 · Acknowledgment — L7 · Part-payment — L8 · Adverse possession

L1 Object of limitation

asked **9×** A3 · B6 · C0

Law helps the vigilant: limitation bars the remedy, not the right (except S.27).

Limitation Act, 1963

⚖️ **Rajender Singh v Santa Singh (1973)** — repose for settled claims

🧠 *C-V-E-P: Certainty · Vigilance · Evidence · Peace*

L2 S.3 — the bar

asked **3×** A0 · B0 · C3

A time-barred suit, appeal or application is dismissed even if no one raises limitation.

S.3

⚖️ **Bombay Dyeing v State of Bombay (1958)** — limitation bars the remedy only

🧠 *Court checks the clock itself*

L3 Condonation of delay

asked **12×** A5 · B3 · C4

Late appeals and applications (not suits) admitted for sufficient cause — read liberally.

S.5

⚖️ **Collector, Anantnag v Mst. Katiji (1987)** — substance over technicality

⇄ **change for T2 · Setting aside ex parte**

🧠 *Applications yes · suits no*

L4 Legal disability

asked **8×** A6 · B2 · C0

Minor, insane or idiot at the start: time runs from when disability ends (max 3 years extra); prison isn't a disability.

S.6–9

🧠 *M-I-I — not jail*

L5 Computation

asked **3×** A1 · B2 · C0

Exclude the first day, time for copies, time in a wrong court in good faith, stays and notices.

S.12–15

🧠 *Exclude · don't extend*

L6 Acknowledgment

asked **6×** A4 · B2 · C0

A written, signed acknowledgment before expiry gives a fresh period from its date.

S.18

⚖️ **Shapoor Freedom Mazda v Durga Prosad Chamaria (1961)** — what counts as acknowledgment

🧠 *Written · Signed · Before expiry*

L7 Part-payment

asked **6×** A1 · B0 · C5

Payment by the debtor before expiry, shown in his writing, restarts the clock.

S.19

🧠 *Pay a part, restart the clock*

L8 Adverse possession

asked **3×** A0 · B0 · C3

12 years' hostile, open, continuous possession extinguishes the owner's title.

S.27 · Art. 65

⚖️ **Ravinder Kaur Grewal v Manjit Kaur (2019)** — the possessor can also sue

🧠 *Nec vi, nec clam, nec precario*

Route maps — Part C

answer each stop · **get off** where the answer is · that is your Issue → Law → Apply → Decision

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Route 1 Can this suit be filed in this court?

Part C pattern · asked: 2013 · 2016 · 2018 · 2022 · 2023

1. **Is the dispute about a civil right (property, office, money, status)?**
   - NO → get off here: Not a civil suit — no jurisdiction (S.9).
   - YES ↓ ride on
2. **Does a law expressly or impliedly bar civil courts (tribunal, special Act)?**
   - YES → get off here: Barred — unless the authority acted illegally / ultra vires (Dhulabhai).
   - NO ↓ ride on
3. **Is the claim within this court's pecuniary limit?**
   - NO → get off here: Return the plaint to the proper court (O.VII r.10; S.6, 15).
   - YES ↓ ride on
4. **Is the land, the wrong, the defendant or the cause of action within its territory?**
   - NO → get off here: Return the plaint (S.16–20, O.VII r.10).
   - YES ↓ ride on

■ **End of line: Maintainable here ✓**

Route 2 Is the second suit barred?

Part C pattern · asked: 2010 · 2013–2020 · 2023 (RJ / sub judice)

1. **Is the earlier suit still pending between the same parties on the same matter?**
   - YES → get off here: Stay the later suit — res sub judice (S.10).
   - NO ↓ ride on
2. **Was the same matter directly and substantially in issue before?**
   - NO → get off here: Not barred — unless it might and ought to have been raised (Expl. IV, constructive RJ).
   - YES ↓ ride on
3. **Same parties (or those claiming under them), same title?**
   - NO → get off here: Not barred.
   - YES ↓ ride on
4. **Was the earlier court competent, and did it hear and finally decide it?**
   - NO → get off here: Not barred.
   - YES ↓ ride on

■ **End of line: Barred by res judicata (S.11) ✓**

Turn any route into a Part C answer

Issue
= the route's question, applied to the names in your problem.

Law
= the sections and cases at the stops you passed.

Apply
= your yes / no at each stop, with the facts that decide it.

Decision
= the station where you got off — say it clearly, with the remedy.

Route maps — Part C

answer each stop · **get off** where the answer is · that is your Issue → Law → Apply → Decision

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Route 3 — Ex parte decree passed — what now?

Part C pattern · asked: 2009 · 2010 · 2015 · Dec 2015 · 2022

1. **Was the summons duly served?**
   - → **NO → get off here** — Set aside under O.IX r.13 (not duly served).
   - **YES ↓ ride on**
2. **Was there sufficient cause for not appearing?**
   - → **YES → get off here** — Set aside under O.IX r.13 — apply within 30 days (Art. 123).
   - **NO ↓ ride on**
3. **Is the 30-day period over?**
   - → **YES → get off here** — Ask condonation with sufficient cause (S.5) — or appeal under S.96(2).
   - **NO ↓ ride on**

■ **End of line: Appeal (S.96(2)) or review — and defend on merits ✓**

Route 4 — Is the claim time-barred?

Part C pattern · asked: Q12 / Q16 in most papers

1. **Is it within the period in the Schedule (after excluding S.12–15 time)?**
   - → **YES → get off here** — In time ✓
   - **NO ↓ ride on**
2. **Was the plaintiff a minor / insane / idiot when time began?**
   - → **YES → get off here** — Time runs after the disability ends (S.6–8).
   - **NO ↓ ride on**
3. **Was there a written, signed acknowledgment or a part-payment before expiry?**
   - → **YES → get off here** — Fresh period from that date (S.18 / S.19).
   - **NO ↓ ride on**
4. **Is it an appeal or application (not a suit) with sufficient cause for delay?**
   - → **YES → get off here** — Delay may be condoned (S.5).
   - **NO ↓ ride on**

■ **End of line: Dismissed under S.3 — and if possession: title extinguished after 12 years (S.27) ×**

Turn any route into a Part C answer

Issue
= the route's question, applied to the names in your problem.

Law
= the sections and cases at the stops you passed.

Apply
= your yes / no at each stop, with the facts that decide it.

Decision
= the station where you got off — say it clearly, with the remedy.

Route 5 Party missing from the suit?

Part C pattern · asked: 2016 · Jan 2019 · Feb 2025

1. **Is he a necessary party — no effective decree without him?**
   → **NO → get off here** — Proper party only — suit proceeds; court may add him (O.I r.10).
   YES ↓ ride on
2. **Can he still be added (O.I r.10(2)), within limitation (S.21 Limitation Act)?**
   → **YES → get off here** — Add him; suit continues against him from the date of joining.
   NO ↓ ride on

■ **End of line: Suit fails for non-joinder of a necessary party (O.I r.9 proviso) ×**

Route 6 Can the defendant be arrested or his property attached before judgment?

Part C pattern · asked: Jan 2018 · May/June 2019 · Feb 2025

1. **Is it a suit for immovable property (S.16 (a)–(d))?**
   → **YES → get off here** — No arrest before judgment (O.XXXVIII r.1).
   NO ↓ ride on
2. **Is he absconding or leaving the court's limits to delay or defeat the decree?**
   → **YES → get off here** — Arrest / security for appearance (O.XXXVIII r.1–2).
   NO ↓ ride on
3. **Is he disposing of or removing his property to obstruct the decree?**
   → **YES → get off here** — Attachment before judgment (O.XXXVIII r.5).
   NO ↓ ride on

■ **End of line: No before-judgment order — use temporary injunction if property is at risk (O.XXXIX) ✓**

Turn any route into a Part C answer

- **Issue** = the route's question, applied to the names in your problem.
- **Law** = the sections and cases at the stops you passed.
- **Apply** = your yes / no at each stop, with the facts that decide it.
- **Decision** = the station where you got off — say it clearly, with the remedy.